

Kanpur Logistics Park Pvt. Ltd. v. Executive Engineer, Electricity Urban Distribution Division, KESCO

High Court of Judicature at Allahabad · Division Bench · 3 December 2018 · WRIT - C No. 39533 of 2018 · **Stay of recategorisation demand; arrears not insisted pending hearing.**

HEADNOTE

On a writ challenging KESCO's 23.11.2018 recategorisation of the consumer from HV-2 to HV-1 and recovery of 2012 arrears first demanded in 2017, the Division Bench recorded that the matter required consideration, listed the petition after pleadings, and stayed the impugned order and insistence on arrears of Rs.34,74,876.59 (and interest) in the 16.12.2017 bill, subject to payment of current HV-2 dues.

FACTUAL SUMMARY

Kanpur Logistics Park Pvt. Ltd. challenged KESCO's 23.11.2018 order recategorising its Kanpur premises from HV-2 to HV-1 after a site visit and raising arrears from October 2012. It alleged no inspection report or notice, a still-subsisting HV-2 agreement, and a first demand only in September 2017, said to violate Section 56 of the Electricity Act, 2003 and Clause 6.15 of the Supply Code, 2005. The 16.12.2017 bill claimed arrears of Rs.34,74,876.59.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

interim stay of HV-1 recategorisation arrears

HOLDING

The challenge to KESCO's 23.11.2018 order recategorising the consumer from HV-2 to HV-1 and raising 2012 arrears requires consideration. Effect and operation of that order are stayed until further orders; the licensee shall not insist on deposit of arrears of Rs.34,74,876.59 in the bill dated 16.12.2017 or interest thereon, provided the petitioners continue to deposit current electricity dues at Tariff HV-2. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF HV-2 TO HV-1 RECATEGORYISATION WITHOUT NOTICE, INSPECTION REPORT, OR CANCELLATION OF THE HV-2 AGREEMENT

Principal challenge; not decided on merits. ¶ 1-2

NOT DECIDED — WHETHER INCLUSION OF 2012 ARREARS FIRST DEMANDED IN SEPTEMBER 2017 VIOLATES SECTION 56 OF THE ELECTRICITY ACT, 2003 AND CLAUSE 6.15 OF THE SUPPLY CODE, 2005

Argued; the Bench only recorded that the matter requires consideration. ¶ 2-3